

Corruption: Legal Framework - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Corruption: Legal Framework

TEN-SESSION CORE PATH • PRACTICE • OPTIONAL ADVANCED • REGISTER NOTES

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| 1 Visual foundation: evolution and the coercive-collusive legal map | 2 Essential definitions and exact statutory boundaries |
| 3 Mechanism: offences, proof, safeguards and supporting legal layers | 4 Indian applications and legally bounded examples |
| 5 Must-know facts for Prelims | 6 UPSC traps and close-option corrections |
| 7 PYQ application and source-routed legal use | 8 Mains angles, reform choices and the qualified answer thesis |
| 9 Probable questions and practice routes | 10 Study links, ownership boundaries and final synthesis |

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Corruption: Legal Framework - Solved Practice Workbook	3
BASIC MCQS / REMEDIATION	3
PYQS AND ANSWER PRACTICE	27
ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS	32

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Generation: learner-v2:g1 **PYQ ownership:** Questions labelled as official reproduce the locally held UPSC GS-IV papers; routed historical demands are explicitly neutral renderings rather than invented quotations.

BASIC MCQS / REMEDIATION

MCQ 1

A revision note says the 2018 reform merely increased punishments while leaving the offence structure unchanged. Which set of structural changes disproves that claim? Which source-grounded ethical principle most precisely explains the case?

- A. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13, inserted s.17A and omitted s.24.
- B. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act.
- C. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it.
- D. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act.

Answer: A

Explanation: The 2018 Amendment changed both reach and safeguards is the controlling principle. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13, inserted s.17A and omitted s.24. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 2

An answer calls the 2018 reform wholly pro-enforcement. Which simultaneous narrowing and approval safeguard require a more qualified assessment? Which source-grounded ethical principle most precisely explains the case?

- A. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it.
- B. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13, inserted s.17A and omitted s.24.
- C. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act.
- D. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act.

Answer: B

Explanation: The 2018 Amendment changed both reach and safeguards is the controlling principle. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13,

inserted s.17A and omitted s.24. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 3

A pensioner pays after an official threatens indefinite delay. How should the transaction be classified for ethical analysis without falsely claiming that the statute itself uses that label? Which source-grounded ethical principle most precisely explains the case?

- A. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13, inserted s.17A and omitted s.24.
- B. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it.
- C. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act.
- D. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act.

Answer: C

Explanation: Coercive and collusive bribery are ARC categories is the controlling principle. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 4

A contractor pays to secure acceptance of substandard work. Why is equal moral treatment of the contractor and the extorted pensioner analytically unsound? Which source-grounded ethical principle most precisely explains the case?

- A. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it.
- B. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act.
- C. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13, inserted s.17A and omitted s.24.
- D. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act.

Answer: D

Explanation: Coercive and collusive bribery are ARC categories is the controlling principle. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 5

An officer accepts money to suppress a mandatory inspection. Which PC Act provision directly addresses the public servant's acceptance? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision.
- B. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence.
- C. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure.
- D. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso.

Answer: A

Explanation: Section 7 governs the public servant being bribed is the controlling principle. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 6

A policy choice benefits one firm but no undue advantage or corrupt exchange is shown. Why can Section 7 not be inferred from benefit alone? Which source-grounded ethical principle most precisely explains the case?

- A. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure.
- B. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision.
- C. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso.
- D. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence.

Answer: B

Explanation: Section 7 governs the public servant being bribed is the controlling principle. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 7

A bidder promises payment so a tender evaluation will be dishonestly altered. Which standalone offence applies to the giver? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision.
- B. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure.
- C. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence.
- D. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso.

Answer: C

Explanation: Section 8 separately criminalises bribe-giving is the controlling principle. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 8

A note states that only the public servant can commit a principal bribery offence. Which 2018 provision makes that proposition obsolete? Which source-grounded ethical principle most precisely explains the case?

- A. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure.
- B. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso.
- C. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision.
- D. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence.

Answer: D

Explanation: Section 8 separately criminalises bribe-giving is the controlling principle. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 9

A citizen pays an extortionate demand for release of an entitled certificate and reports it two days later. Which statutory condition is central? Which source-grounded ethical principle most precisely explains the case?

- A. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure.
- B. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision.
- C. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence.
- D. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso.

Answer: A

Explanation: Section 8's compulsion defence is conditional is the controlling principle. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 10

A contractor voluntarily paid for an unlawful advantage and alleges coercion months after detection. Why does Section 8 not automatically protect that claim? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence.
- B. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure.
- C. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso.
- D. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision.

Answer: B

Explanation: Section 8's compulsion defence is conditional is the controlling principle. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 11

A complainant, acting after informing investigators, hands over marked currency in a lawful trap. Which Section 8 distinction prevents treating the complainant as an offender? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision.
- B. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence.
- C. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso.
- D. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure.

Answer: C

Explanation: Assisted investigative conduct has a separate Section 8 protection is the controlling principle. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 12

Why should an answer separate prior investigative cooperation from a post-payment claim of compulsion? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.8 punishes giving or promising an undue advantage with intent to induce improper performance of public duty or to reward such performance; after 2018, the giver's liability is therefore not confined to abetment of the public servant's offence.
- B. A person compelled to give an undue advantage can invoke s.8's statutory protection only if the matter is reported to a law-enforcement authority or investigating agency within seven days from giving it; this is narrower than a general immunity for every person who later claims pressure.
- C. PC Act s.7 covers a public servant who obtains, accepts or attempts to obtain an undue advantage with the required connection to improper or dishonest performance of public duty, including receipt as a reward; proof must satisfy the statutory ingredients rather than merely show an unpopular official decision.
- D. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso.

Answer: D

Explanation: Assisted investigative conduct has a separate Section 8 protection is the controlling principle. PC Act s.8 does not apply where, after informing a law-enforcement authority or investigating agency, a person gives or promises an undue advantage in order to assist that authority or agency in its investigation; this must not be confused with the seven-day compulsion proviso. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 13

An intermediary bribes a licensing officer to retain a company's contract. Which provision addresses organisational liability? Which source-grounded ethical principle most precisely explains the case?

- A. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence.
- B. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual.
- C. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation.
- D. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office.

Answer: A

Explanation: Section 9 creates commercial-organisation liability is the controlling principle. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 14

A company argues that only the individual intermediary can ever be liable. Which post-2018 offence defeats that categorical defence? Which source-grounded ethical principle most precisely explains the case?

- A. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation.
- B. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence.
- C. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office.
- D. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual.

Answer: B

Explanation: Section 9 creates commercial-organisation liability is the controlling principle. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 15

A company had risk-based controls, training, due diligence and enforced reporting systems before a rogue agent acted. Which defence must still be proved on evidence? Which source-grounded ethical principle most precisely explains the case?

- A. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence.
- B. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation.
- C. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual.
- D. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office.

Answer: C

Explanation: Adequate procedures belong to Section 9 is the controlling principle. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 16

A dormant anti-bribery policy was ignored by management. Why does the mere existence of the document not settle the adequate-procedures question? Which source-grounded ethical principle most precisely explains the case?

- A. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation.
- B. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office.
- C. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence.
- D. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual.

Answer: D

Explanation: Adequate procedures belong to Section 9 is the controlling principle. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 17

Emails show a director approved an agent's bribery plan. Which personal-liability ingredient is engaged? Which source-grounded ethical principle most precisely explains the case?

- A. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation.
- B. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence.
- C. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual.
- D. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office.

Answer: A

Explanation: Section 10 requires consent or connivance is the controlling principle. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 18

A remote officer had no knowledge, involvement or connivance. Why is hierarchy alone insufficient under Section 10? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual.
- B. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation.
- C. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office.
- D. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence.

Answer: B

Explanation: Section 10 requires consent or connivance is the controlling principle. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 19

A public servant diverts entrusted relief material for connected private sale. Which current Section 13 head is directly relevant? Which source-grounded ethical principle most precisely explains the case?

- A. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence.
- B. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual.
- C. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office.
- D. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation.

Answer: C

Explanation: Post-2018 Section 13 has two criminal-misconduct heads is the controlling principle. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 20

Assets become disproportionate to known lawful income and cannot be satisfactorily accounted for. Which current Section 13 concept is engaged? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.9 permits the commercial organisation to prove that it had adequate procedures, compliant with prescribed guidelines, to prevent associated persons from undertaking the prohibited conduct; it is a statutory defence for the organisation, not automatic immunity created by a paper compliance manual.
- B. Where an s.9 offence is committed by a commercial organisation and is proved in court to have occurred with the consent or connivance of a director, manager, secretary or other officer, s.10 makes that officer personally guilty; it does not impose liability on every senior officer merely by designation.
- C. A commercial organisation is punishable with fine under s.9 when an associated person gives or promises an undue advantage intending to obtain or retain business, or an advantage in business, for that organisation, subject to the statutory adequate-procedures defence.
- D. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office.

Answer: D

Explanation: Post-2018 Section 13 has two criminal-misconduct heads is the controlling principle. PC Act s.13 now confines criminal misconduct to dishonest or fraudulent misappropriation or conversion of property entrusted to, or under the control of, a public servant, including allowing another person to do so, and intentional illicit enrichment during the period of office. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 21

An official arbitrarily favours a relative but personal enrichment and entrusted-property misappropriation are not proved. Why must an answer avoid citing the deleted provision? Which source-grounded ethical principle most precisely explains the case?

- A. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads.
- B. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery.
- C. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position.
- D. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism.

Answer: A

Explanation: The abuse-of-position head was removed from Section 13 is the controlling principle. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 22

How does the narrowing protect good-faith policy discretion while potentially reducing reach against favouritism-based wrongdoing? Which source-grounded ethical principle most precisely explains the case?

- A. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position.
- B. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads.
- C. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism.
- D. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery.

Answer: B

Explanation: The abuse-of-position head was removed from Section 13 is the controlling principle. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 23

Investigators propose to examine a retired officer's official procurement decision. Which approval-stage provision must be tested? Which source-grounded ethical principle most precisely explains the case?

- A. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage.
- B. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act.
- C. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties.
- D. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other.

Answer: C

Explanation: Section 17A operates before specified investigation is the controlling principle. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 24

An answer limits Section 17A to serving Joint Secretary-level officers. Which two statutory scope errors does it make? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act.
- B. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other.
- C. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage.
- D. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties.

Answer: D

Explanation: Section 17A operates before specified investigation is the controlling principle. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 25

An officer is caught while accepting marked currency. Which express exception prevents Section 17A from becoming a shield against the immediate trap? Which source-grounded ethical principle most precisely explains the case?

- A. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage.
- B. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties.
- C. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act.
- D. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other.

Answer: A

Explanation: Section 17A contains a timeline and spot-arrest exception is the controlling principle. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 26

An authority remains silent beyond four months. Why should an answer mention breach or delay without inventing deemed approval? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act.
- B. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage.
- C. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other.
- D. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties.

Answer: B

Explanation: Section 17A contains a timeline and spot-arrest exception is the controlling principle. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 27

A court is asked to take cognizance of a qualifying Section 13 charge against a public servant. Which stage-specific safeguard must be satisfied? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties.
- B. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage.
- C. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act.
- D. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other.

Answer: C

Explanation: Section 19 concerns court cognizance and prosecution sanction is the controlling principle. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 28

Why is it inaccurate to say Section 19 expressly lists Sections 8 and 9? Which source-grounded ethical principle most precisely explains the case?

- A. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage.
- B. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other.
- C. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties.
- D. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act.

Answer: D

Explanation: Section 19 concerns court cognizance and prosecution sanction is the controlling principle. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 29

An answer says prosecution sanction is always the first permission needed before any fact-finding. Which distinction corrects it? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other.
- B. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties.
- C. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage.
- D. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act.

Answer: A

Explanation: Sections 17A and 19 guard different stages is the controlling principle. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 30

Why can a matter raise both Section 17A and Section 19 questions at different times? Which source-grounded ethical principle most precisely explains the case?

- A. The approving authority must convey its s.17A decision within three months, extendable by one month for reasons recorded in writing; previous approval is not required for cases involving on-the-spot arrest of a person accepting or attempting to accept an undue advantage.
- B. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other.
- C. PC Act s.19 bars a court from taking cognizance of specified offences alleged to have been committed by a public servant without previous sanction of the competent government or authority; the current list is Sections 7, 10, 11, 13 and 15, not every offence in the Act.
- D. PC Act s.17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act offence alleged against a serving or former public servant where the allegation is relatable to a recommendation made or decision taken in discharge of official functions or duties.

Answer: B

Explanation: Sections 17A and 19 guard different stages is the controlling principle. PC Act s.17A addresses previous approval before specified enquiry, inquiry or investigation into an official-duty recommendation or decision, whereas s.19 addresses previous sanction before the court takes cognizance for listed offences; one safeguard cannot be described as merely another name for the other. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 31

The prosecution proves acceptance of an undue advantage in a Section 7 trial. Which provision shifts the evidentiary burden without eliminating the chance of rebuttal? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years.
- B. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry.
- C. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved.
- D. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence.

Answer: C

Explanation: Section 20 creates a rebuttable evidentiary presumption is the controlling principle. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 32

Why is it wrong to describe Section 20 as an irrebuttable presumption of guilt for every PC Act offence? Which source-grounded ethical principle most precisely explains the case?

- A. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry.
- B. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence.
- C. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years.
- D. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved.

Answer: D

Explanation: Section 20 creates a rebuttable evidentiary presumption is the controlling principle. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 33

A note states that old Section 24 permanently immunised every payer in every setting. Which two qualifications are missing? Which source-grounded ethical principle most precisely explains the case?

- A. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it.
- B. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13, inserted s.17A and omitted s.24.
- C. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act.
- D. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act.

Answer: A

Explanation: Omitted Section 24 was limited even before omission is the controlling principle. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 34

What replaced the earlier structure when Section 8 became a standalone giver offence? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act.
- B. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it.
- C. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act.
- D. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13, inserted s.17A and omitted s.24.

Answer: B

Explanation: Omitted Section 24 was limited even before omission is the controlling principle. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 35

A candidate confuses investigation approval with the forum and pace of trial. Which Section 4 features should be separately stated? Which source-grounded ethical principle most precisely explains the case?

- A. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved.
- B. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry.
- C. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years.
- D. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence.

Answer: C

Explanation: Special Judges and trial timelines remain distinct safeguards is the controlling principle. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 36

Why does the statutory trial endeavour not guarantee disposal in exactly two years? Which source-grounded ethical principle most precisely explains the case?

- A. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry.
- B. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence.
- C. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved.
- D. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years.

Answer: D

Explanation: Special Judges and trial timelines remain distinct safeguards is the controlling principle. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 37

Evidence fails to prove a PC Act offence beyond reasonable doubt, but service-rule misconduct remains supported on the applicable departmental standard. What distinction applies? Which source-grounded ethical principle most precisely explains the case?

- A. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry.
- B. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved.
- C. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years.
- D. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence.

Answer: A

Explanation: Criminal and departmental processes are not identical is the controlling principle. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 38

Why must an audit or vigilance finding be treated as a lead rather than a criminal conviction? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years.
- B. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry.
- C. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence.
- D. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved.

Answer: B

Explanation: Criminal and departmental processes are not identical is the controlling principle. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 39

An answer treats the original 1988 confiscation provision as fully operational for the preceding eighteen years. Which ARC diagnosis and 2016 reform correct it? Which source-grounded ethical principle most precisely explains the case?

- A. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads.
- B. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position.
- C. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery.
- D. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism.

Answer: C

Explanation: The 2016 Benami regime strengthened asset recovery prospectively in form is the controlling principle. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 40

Which date marks commencement of the substantially strengthened 2016 regime? Which source-grounded ethical principle most precisely explains the case?

- A. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position.
- B. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism.
- C. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads.
- D. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery.

Answer: D

Explanation: The 2016 Benami regime strengthened asset recovery prospectively in form is the controlling principle. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 41

A candidate states that the 2022 bar on retrospective operation remains the Supreme Court's final word. Which 2024 procedural event defeats that statement? Which source-grounded ethical principle most precisely explains the case?

- A. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position.
- B. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads.
- C. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery.
- D. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism.

Answer: A

Explanation: Ganpati Dealcom's 2022 judgment was recalled is the controlling principle. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 42

Why does recall reopen the issue rather than establish the opposite merits conclusion? Which source-grounded ethical principle most precisely explains the case?

- A. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery.
- B. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position.
- C. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism.
- D. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads.

Answer: B

Explanation: Ganpati Dealcom's 2022 judgment was recalled is the controlling principle. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 43

A public servant assumes the 2014 Act supplies an operational statutory shield today. Which commencement fact must be checked first? Which source-grounded ethical principle most precisely explains the case?

- A. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads.
- B. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery.
- C. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism.
- D. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position.

Answer: C

Explanation: The Whistle Blowers Protection Act remains uncommenced is the controlling principle. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 44

What limited interim mechanism should be named without pretending that it equals a comprehensive commenced statute? Which source-grounded ethical principle most precisely explains the case?

- A. The Benami Transactions (Prohibition) Amendment Act, 2016 substantially re-enacted and renamed the 1988 statute as the Prohibition of Benami Property Transactions Act, 1988, effective from 1 November 2016, with fuller definitions, adjudication, appeal and confiscation machinery.
- B. On 18 October 2024, the Supreme Court recalled its 23 August 2022 Ganpati Dealcom judgment and restored Civil Appeal No. 5783 of 2022 for fresh adjudication because constitutional validity had been decided without a lis and contest; the recalled 2022 conclusions must not be cited as the present settled merits position.
- C. The 2018 Amendment deleted the former broad s.13(1)(d) abuse-of-position route; favouritism or an indefensible decision may remain ethically, disciplinarily or under another offence legally wrongful, but it is not automatically current s.13 criminal misconduct without one of the surviving statutory heads.
- D. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism.

Answer: D

Explanation: The Whistle Blowers Protection Act remains uncommenced is the controlling principle. The Whistle Blowers Protection Act, 2014 received Presidential assent on 9 May 2014 but no commencement notification under s.1(3) has been issued; the 2015 Amendment Bill lapsed, while the 2004 PIDPI Resolution remains the interim central administrative mechanism. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 45

An inspector knowingly suppresses a mandatory violation report to benefit a connected operator. How should the ethical failure be described without inventing a general PC Act offence? Which source-grounded ethical principle most precisely explains the case?

- A. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence.
- B. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved.
- C. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years.
- D. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry.

Answer: A

Explanation: Wilful non-performance is not automatically a PC Act offence is the controlling principle. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 46

A good-faith policy judgment later fails. Which bona-fides limit prevents every adverse outcome from being labelled corruption? Which source-grounded ethical principle most precisely explains the case?

- A. PC Act offences are tried by Special Judges under s.4; trial should proceed day to day as far as practicable, with an endeavour to conclude within two years and recorded six-month extensions, while total trial time should not ordinarily exceed four years.
- B. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence.
- C. The same suspected misconduct may generate vigilance screening, departmental proceedings, criminal prosecution and civil or confiscation action, each with its own authority, purpose, standard and remedy; criminal acquittal does not mechanically end every departmental inquiry.
- D. In a trial for an offence punishable under s.7 or s.11, once acceptance, obtaining or attempted obtaining of an undue advantage by the accused public servant is proved, s.20 directs the court to presume the relevant corrupt motive, reward or absence/inadequacy of consideration unless the contrary is proved.

Answer: B

Explanation: Wilful non-performance is not automatically a PC Act offence is the controlling principle. The ARC's acts-of-omission analysis can treat wilful or grossly negligent non-performance that causes public harm or connected benefit as an ethical and disciplinary corruption failure, but criminal liability still requires proof of the ingredients of an applicable offence. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 47

An answer claims every NGO receiving more than half its operating cost from government is already expressly covered by the cited ARC clause. What source-status error occurs? Which source-grounded ethical principle most precisely explains the case?

- A. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13, inserted s.17A and omitted s.24.
- B. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act.
- C. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act.
- D. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it.

Answer: C

Explanation: **ARC reform proposals must not be presented as enacted law** is the controlling principle. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

MCQ 48

How should the proposal for tougher collusive-bribery treatment be used in a Mains conclusion? Which source-grounded ethical principle most precisely explains the case?

- A. The Second Administrative Reforms Commission distinguishes coercive bribery, where an unwilling citizen pays for an entitlement or to avoid harassment, from collusive bribery, where giver and taker benefit while the state or public loses; these labels are analytical categories, not express classifications in the PC Act.
- B. Before 2018, s.24 protected a person from s.12 prosecution on the basis of a statement in proceedings against a public servant that the person had offered gratification; it was not blanket immunity for all bribe-givers, and the 2018 Amendment omitted it.
- C. The Prevention of Corruption (Amendment) Act, 2018 replaced the older gratification-centred s.7 with an undue-advantage formulation, created a standalone bribe-giving offence in s.8, added commercial-organisation liability, narrowed s.13, inserted s.17A and omitted s.24.
- D. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act.

Answer: D

Explanation: **ARC reform proposals must not be presented as enacted law** is the controlling principle. The ARC recommended a distinct and more severely punished collusive-bribery offence, a presumption where public loss is established, and extended coverage for specified public-utility providers and substantially government-funded NGOs; these are reform proposals, not descriptions of the current PC Act. The distractors are related propositions, but they do not identify the decisive mechanism in this case.

PYQS AND ANSWER PRACTICE

Solved PYQ 1 - 2018 - 20 marks

Question: Neutral routing of GS-IV Q12: Edward Snowden disclosed classified information about government surveillance, claiming a moral duty to inform the public despite the Espionage Act. Were his actions ethically justified even if legally prohibited? Weigh the competing values. (250 words)

Source / ownership: Neutral demand faithfully routed from books\more_previous_papers\GENERAL-STUDIES-PAPER-IV.pdf, page 11. The official paper contains the full case. Topic 19 uses it for the law-versus-whistleblowing boundary; Topic 22 owns complete case-study method.

Model solution

Snowden's claim engages public interest, privacy, democratic accountability and conscience, while the opposing side invokes legality, official secrecy, national security, institutional trust and foreseeable harm. Whistleblowing is not justified merely because the discloser sincerely disagrees with policy. A defensible ethical assessment asks whether the wrongdoing was serious, evidence was verified, authorised channels were available or compromised, disclosure was proportionate, sensitive material was minimised and likely public benefit exceeded avoidable harm.

On that test, exposing unlawful or structurally unaccountable surveillance may serve constitutional democracy, especially where internal remedies are ineffective. Yet a bulk disclosure that unnecessarily exposes legitimate operations, individuals or security methods remains ethically blameworthy even if the central warning was valuable. Legal prohibition is highly relevant but not always morally conclusive; equally, moral purpose does not erase legal accountability.

For Indian application, the answer should avoid claiming that the Whistle Blowers Protection Act, 2014 currently protects such disclosure: it has not been brought into force. The sound conclusion is qualified justification only where necessity, evidence, proportionality and public-interest safeguards are convincingly established.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 2 - 2019 - 10 marks

Question: GS-IV Q2(b): "Non-performance of duty by a public servant is a form of corruption". Do you agree with this view? Justify your answer. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM19-GeneralStudies-IV.pdf, page 2. Topic 19 owns the distinction between the ARC's ethical acts-of-omission analysis and actual PC Act criminal ingredients.

Model solution

I agree only in a qualified ethical sense. Public office is entrusted for lawful and timely performance. Wilful inaction can operate like corruption when an officer delays an entitlement to extract payment, deliberately ignores an offence to favour a connected person, or suppresses a mandatory report so another gains and the public loses. The ARC's broader acts-of-omission analysis therefore treats deliberate dereliction as a corruption failure even without a visible cash transfer.

However, poor outcome, delay or error is not automatically corrupt. Capacity shortage, conflicting legal duties, reasonable prioritisation and a bona fide decision that later fails require administrative learning, not criminal stigma. The test should examine a clear duty, knowledge, capacity, wilfulness or gross negligence, improper benefit, foreseeable harm and concealment.

The legal boundary is essential: the PC Act does not create a general offence called non-performance of duty. Criminal liability arises only when facts satisfy Section 7, 13 or another applicable offence; disciplinary liability may operate on a different standard.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 3 - 2019 - 20 marks

Question: GS-IV Section B concluding question: India seeks effective civil-service ethics, codes of conduct, transparency measures, ethics and integrity systems and anti-corruption agencies. Suggest institutional measures for anticipating threats, strengthening ethical competence and developing integrity-promoting administrative processes. (250 words)

Source / ownership: Faithful condensed routing verified against books\more_previous_papers\QP-CSM19-GeneralStudies-IV.pdf, page 7. Topic 19 uses the legal-framework component; Topics 16 and 20 own codes and detailed institutional jurisdictions.

Model solution

Threat anticipation should begin with legal and process mapping. Departments should identify points where an undue advantage can alter licensing, inspection, procurement, tax, transfer or benefit decisions. Risk registers should combine complaint patterns, audit findings, unexplained overrides, conflict declarations and recurring delay. Officials need practical training on Sections 7 and 8, corporate-bribery exposure under Sections 9 and 10, current Section 13 limits, evidence preservation and the distinct stages governed by Sections 17A and 19.

Integrity-promoting processes include written criteria, reasoned orders, role separation, protected reporting, independent verification and fair, time-bound disciplinary and criminal referral. Section 17A should protect genuine official decisions without becoming indefinite investigative obstruction; Section 19 sanction decisions likewise require recorded, timely treatment. Companies dealing with government should maintain genuine adequate anti-bribery procedures rather than symbolic policies.

Whistleblower safety remains a gap because the 2014 Act is uncommenced; interim PIDPI protection cannot be treated as equivalent to a comprehensive statute. Benami asset recovery and recovery of public loss should complement prosecution. The design must combine prevention, evidence, due process and remedy, while detailed agency allocation is left to the relevant institutional framework.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 4 - 2021 - 20 marks

Question: Neutral routing of GS-IV Q7: a newly posted officer confronts an illegal sand-mining mafia supported by local functionaries, bribed and intimidated residents, compromised employees and a wider nexus. Examine the ethical issues and the appropriate official response. (250 words)

Source / ownership: Neutral demand faithfully routed from books\more_previous_papers\QP-CSM-21-GENSTUDIESPAPER-IV-110122.pdf, pages 4-5. The official paper contains the complete facts and sub-questions. Topic 19 uses it for bribery classification, evidence and legal-process boundaries; Topic 22 owns complete option analysis.

Model solution

The facts indicate an organised corruption network rather than a single transaction. Payments or inducements used to obtain illegal extraction and official protection are collusive in the ARC sense where both payer and recipient benefit while public revenue, ecology and rule of law suffer. Poor residents acting under intimidation may instead be coerced participants or witnesses and should not be equated with principal beneficiaries.

The officer should protect life, secure records and physical evidence, separate compromised staff from sensitive functions and coordinate lawful investigation. Suspected acceptance by public servants must be tested against Section 7; giver conduct against Section 8; company involvement may raise Sections 9 and 10; illicit enrichment or entrusted-property misappropriation may engage current Section 13. These provisions should not be asserted without proof of their ingredients. Approval under Section 17A depends on whether inquiry concerns an official-duty recommendation or decision; the spot-acceptance exception must also be remembered.

Witness protection, confidential reporting, transparent permit and transport trails, revenue recovery and disciplinary proceedings should accompany criminal referral. Individual arrests alone will fail unless the enabling administrative network is dismantled.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 5 - 2022 - 10 marks

Question: GS-IV Q6(a): A whistle-blower reporting corruption, illegal activities, wrongdoing and misconduct risks exposure to grave danger, physical harm and victimisation by vested interests. What policy measures would strengthen the protection mechanism? (150 words)

Source / ownership: English wording verified against books\more_previous_papers\QP-CSM-22-GENERAL-STUDIES-PAPER IV-190922.pdf, page 4. Minor punctuation is normalised from the official bilingual paper. This is Topic 19's direct whistleblower PYQ.

Model solution

Protection must begin with a safe, confidential reporting channel, identity minimisation, secure evidence handling and a prohibition on unauthorised disclosure. A credible system needs early threat assessment, transfer or workplace protection, legal and financial support, time-bound inquiry, anti-retaliation remedies and personal accountability for victimisation. Anonymous information may trigger verification, but adverse action should rest on tested evidence and fair hearing.

India's legal status must be stated precisely. The Whistle Blowers Protection Act, 2014 received assent but has not been brought into force because no Section 1(3) commencement notification has issued. The 2015 Amendment Bill lapsed. The PIDPI Resolution, 2004 remains an interim administrative route for specified central matters, but it is not a substitute for a comprehensive commenced statute.

Reform should operationalise a balanced law with narrowly defined security exclusions, independent review of withheld disclosures, witness protection, interim relief and penalties for retaliation or malicious identity disclosure. Protection should reward responsible evidence-based reporting without immunising knowingly false complaints.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 6 - 2022 - 20 marks

Question: Neutral routing of GS-IV Q10: an investigative journalist uncovers a stone-mining mafia involving corrupt officials, politicians and a conflicted media owner, but faces inducement and pressure to suppress the report. Evaluate the legal-ethical issues and the appropriate response. (250 words)

Source / ownership: Neutral demand faithfully routed from books\more_previous_papers\QP-CSM-22-GENERAL-STUDIES-PAPER IV-190922.pdf, page 10. Topic 19 uses the corruption-law and whistleblower-protection dimensions; Topic 22 owns complete case method.

Model solution

The network suggests collusive corruption: illegal commercial gain is exchanged for official protection, while ecology, public revenue and lawful competitors bear the loss. The offered inducement to the journalist creates a fresh integrity test. He should refuse and document it, authenticate the material, preserve copies and protect sources. Publication must be proportionate and legally reviewed so that necessary public disclosure does not recklessly expose witnesses or compromise a legitimate investigation.

Evidence concerning public servants should be routed to competent authorities and tested against statutory ingredients: Section 7 for acceptance of undue advantage, Section 8 for the giver, Sections 9 and 10 where a commercial organisation and consenting officers are involved, and Section 13 only where its surviving misappropriation or illicit-enrichment heads are made out. A media allegation, however credible, is not itself conviction. Investigative permissions and prosecution sanction arise at their distinct statutory stages.

The journalist cannot assume comprehensive protection under the uncommenced 2014 Whistle Blowers Act. Safety planning, secure channels and independent editorial or legal support are therefore indispensable. The administrative response must trace money, permits and decisions and dismantle the protective network, not merely punish one visible official.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 7 - 2023 - 10 marks

Question: GS-IV Q2(a): "Corruption is the manifestation of the failure of core values in the society." In your opinion, what measures can be adopted to uplift the core values in the society? (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-23-GENERAL-STUDIES-PAPER-IV-180923.pdf, page 2. Topic 19 supplies the law-and-incentive qualification; Topics 1 and 2 own general value formation.

Model solution

Corruption reflects failure of honesty, fairness, responsibility and regard for public goods, but values operate within incentives. A citizen may condemn bribery yet pay under coercion for an entitlement; a business may normalise collusion because opaque discretion and weak enforcement make it profitable. Value uplift therefore requires family and school example, civic education, ethical leadership and social disapproval of illicit wealth, combined with institutions that make integrity practicable.

Law should distinguish roles and mechanisms. Section 8's conditional protection for a compelled payer supports reporting, while collusive givers require accountability. Sections 9 and 10 should be reinforced by real corporate anti-bribery procedures. Clear entitlements, reasoned decisions, transparent processes, protected complaints and fair, timely enforcement reduce opportunities for values to be overwhelmed.

Punishment alone can produce fear without character; moral exhortation alone can produce cynicism where corruption pays. Sustainable reform aligns personal virtue, professional norms, opportunity reduction, credible detection, proportionate consequence and protection for those who resist or report wrongdoing.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 8 - 2023 - 10 marks

Question: GS-IV Q2(b): In the context of work environment, differentiate between 'coercion' and 'undue influence' with suitable examples. (150 words)

Source / ownership: Exact English wording verified against books\more_previous_papers\QP-CSM-23-GENERAL-STUDIES-PAPER-IV-180923.pdf, page 2. Topic 19 uses the distinction to clarify Section 8 compulsion; the PYQ's terms are not statutory labels for ARC coercive and collusive bribery.

Model solution

Coercion uses an explicit or implicit threat of serious harm to compel conduct. A licensing clerk who threatens indefinite denial of an entitled certificate unless paid constrains the citizen's practical freedom. Undue influence exploits authority, trust, dependence or vulnerability so that judgment is overborne without a direct threat; for example, a superior repeatedly links a junior's appraisal prospects to selection of a preferred vendor.

Evidence differs. Coercion focuses on demand, threat, constrained choice and prompt complaint. Undue influence focuses on positional power, private access, dependency, unusual departure from criteria and the resulting decision. Reasoned persuasion is neither. Safeguards include written directions, plural decision-making, review of transfer and appraisal powers, conflict disclosure and anti-retaliation channels.

For corruption law, precision matters. ARC's coercive-versus-collusive bribery distinction is analytical, while Section 8 uses the statutory word compelled and requires reporting within seven days. The workplace concept of undue influence should not be substituted for either the statutory ingredients of bribery or the ARC's collusive category.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 9 - 2023 - 20 marks

Question: Neutral routing of GS-IV Q12: a public-sector executive receives documents and a video suggesting that the corporation's chairman demanded a bribe connected with a large tyre order and accelerated pending bills. What should the executive do and which ethical and legal concerns arise? (250 words)

Source / ownership: Neutral demand faithfully routed from books\more_previous_papers\QP-CSM-23-GENERAL-STUDIES-PAPER-IV-180923.pdf, pages 10-11. The official case contains the full institutional and personal pressures. Topic 19 owns provision-level routing; Topic 22 owns complete case architecture.

Model solution

The documents create a credible allegation, not a concluded offence. The executive should secure original metadata and copies, record chain of custody, avoid alerting persons who could destroy evidence and seek confidential legal or authorised vigilance advice. The video must be authenticated and procurement files, bill-clearing patterns, communications and decision reasons independently examined. He should disclose any personal or political conflict and resist pressure either to suppress the matter or publicly convict the chairman.

If a public servant demanded or accepted an undue advantage for dishonest performance, Section 7 may apply. The payer or promisor may raise Section 8; company liability depends on Section 9's associated-person and business-benefit elements, while personal corporate officer liability under Section 10 requires consent or connivance. Section 13 should be invoked only for its surviving misappropriation or illicit-enrichment heads. Section 17A and Section 19 must be assessed at their distinct investigation and cognizance stages.

The executive's duty is lawful escalation, evidence protection and institutional continuity, not private retaliation. Fair hearing and confidentiality protect both the inquiry and innocent reputations while enabling proportionate criminal, disciplinary and contractual action if proved.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

Solved PYQ 10 - 2024 - 20 marks

Question: Neutral routing of GS-IV Q11: farmers facing water scarcity allege that the district administration is corrupt and has been bribed by industries drawing groundwater, while closure threatens employment. Discuss the options, compatible stakeholder measures and the administrator's ethical dilemmas. (250 words)

Source / ownership: Neutral demand faithfully routed from books\mains\05 UPSC 2024 Paper-IV_Final 1.pdf, page 9. The official case contains the full water-allocation facts and sub-questions. Topic 19 uses it for allegation, proof and legal-classification boundaries; Topic 22 owns complete case method.

Model solution

The collector must separate the urgent resource crisis from the unproved bribery allegation. Immediate action should use lawful water-priority rules, verified extraction data, temporary conservation directions, drinking-water protection and transparent allocation criteria. Industries should face metering, recharge, recycling and proportionate curbs; farmers need equitable schedules, efficient irrigation support and a reasoned grievance forum. Employment effects matter but cannot legalise unsustainable extraction.

The corruption claim requires confidential evidence collection, protection against retaliation and independent review of permissions, inspection records, payments, communications and conflict links. Public accusations or political pressure cannot substitute for proof. If an undue advantage induced dishonest official action, Sections 7 and 8 may be engaged; company conduct may raise Sections 9 and 10. Current Section 13 is not a general abuse-of-position offence, so its surviving heads must be proved. Section 17A applicability depends on whether the proposed inquiry concerns an official-duty recommendation or decision.

The ethical dilemma is not farmers versus workers alone; it is impartial scarcity management under distrust. Publishing verified data and reasons, while keeping the criminal inquiry fair and confidential, can protect both ecological justice and due process.

Why this earns marks: It states the governing ethical idea, translates it into public administration, uses a concrete Indian illustration, acknowledges a limit, and ends with a reasoned verdict.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original Mains Practice 1 - 10 marks

Question: Distinguish Section 17A approval from Section 19 sanction under the Prevention of Corruption Act. Why does the distinction matter? Answer in about 150 words.

Model solution

Section 17A and Section 19 protect different procedural stages. Section 17A requires previous approval before a police officer conducts an enquiry, inquiry or investigation into a PC Act allegation relatable to a recommendation made or decision taken by a serving or former public servant in discharge of official functions. It is rank-neutral, prescribes three months plus a recorded one-month extension, and excludes on-the-spot arrest while accepting or attempting to accept an undue advantage.

Section 19, by contrast, prevents a court from taking cognizance of listed offences alleged against a public servant without previous sanction of the competent government or authority. Its list is Sections 7, 10, 11, 13 and 15; it is not a universal list of all PC Act offences.

The distinction matters because conflation can either obstruct lawful preliminary action or erase a statutory safeguard. A precise answer states the stage, trigger, authority, timeline and exception, while acknowledging the common policy tension between protecting bona fide decision-making and preventing delay from shielding corruption.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 2 - 10 marks

Question: How far does Section 8 of the Prevention of Corruption Act reflect the ARC's coercive-collusive bribery distinction? Answer in about 150 words.

Model solution

The ARC classifies coercive bribery as extortion from an unwilling citizen seeking an entitlement, while collusive bribery benefits giver and taker at public cost. The PC Act does not expressly enact these labels. Nevertheless, Section 8 partly reflects the distinction by making bribe-giving a standalone offence while protecting a person who was compelled to give the undue advantage and reports it to law enforcement or an investigating agency within seven days. A separate protection covers giving after informing investigators to assist an investigation.

This structure can protect the coerced victim and pursue the willing beneficiary. It also reduces the older mismatch after Section 24 was omitted. Yet the alignment is incomplete. Compelled is a statutory term requiring case-specific proof; collusive bribery is not a separately named current offence with the ARC's recommended special presumption and enhanced punishment. The seven-day condition may also burden fearful or vulnerable victims.

Thus Section 8 moves toward the ARC's moral distinction but does not convert that analytical framework into a complete statutory classification.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 3 - 15 marks

Question: The 2018 Prevention of Corruption Amendment simultaneously strengthened and narrowed anti-corruption law. Analyse with reference to Sections 7, 8, 9, 10 and 13. Answer in about 200 words.

Model solution

The Amendment strengthened the transactional side of anti-corruption law. Section 7 now uses the defined term undue advantage, which is not confined to cash and excludes legal remuneration. Section 8 makes giving or promising a bribe a standalone offence, while preserving conditional protection for a compelled payer who reports within seven days and for informed assistance to an investigation. Sections 9 and 10 add a corporate dimension: a commercial organisation may be fined for business-linked bribery by an associated person, subject to an adequate-procedures defence, and consenting or conniving directors or officers may incur personal liability.

The same reform narrowed Section 13. Criminal misconduct is now confined to dishonest or fraudulent misappropriation or conversion of entrusted property and intentional illicit enrichment. The former broad abuse-of-position head was removed. This improves certainty and reduces the danger that a defensible policy choice is criminalised merely because it favours one outcome. Conversely, favouritism causing public loss without direct enrichment may become harder to prosecute under Section 13, even when disciplinary or other legal liability survives.

The correct assessment is therefore double-edged. The Amendment closes giver and corporate liability gaps but contracts one route against public-servant misconduct. Reform should combine clear offences with evidence-based enforcement, genuine corporate prevention and safeguards that protect bona fide discretion without creating impunity.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 4 - 15 marks

Question: Assess the two unresolved supporting gaps in India's anti-corruption legal framework: whistleblower protection and Benami-law retrospectivity. Answer in about 200 words.

Model solution

Detection and asset recovery are indispensable companions to bribery prosecution, yet both areas contain verified uncertainty. The Whistle Blowers Protection Act, 2014 received assent on 9 May 2014, but no commencement notification under Section 1(3) has been issued. A December 2025 official parliamentary answer confirmed that amendments were considered necessary before commencement; the 2015 Amendment Bill had lapsed. PIDPI, 2004 remains an interim central administrative mechanism, but it cannot be presented as equivalent to a comprehensive operative statute. This gap chills reporting and leaves retaliation protection fragmented.

The 2016 Benami amendment created fuller identification, adjudication and confiscation machinery from 1 November 2016. In 2022, Ganpati Dealcom made major findings against retrospective reach and the unamended provisions. On 18 October 2024, however, the Supreme Court recalled that judgment because constitutional validity had been decided without a lis and contest, and restored the appeal for fresh adjudication. Recall removes the earlier judgment as the settled merits position; it does not establish the opposite conclusion.

India needs a balanced commenced whistleblower law with reviewable security exclusions, anti-retaliation relief and confidentiality, alongside prompt fresh adjudication and clear transition rules for Benami proceedings. Until then, answers must state the gaps and uncertainty.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 5 - 20 marks

Question: Evaluate the internal architecture of the Prevention of Corruption Act after 2018, including offences, proof, investigation approval and prosecution sanction. Answer in about 250 words.

Model solution

The post-2018 Act creates a linked but stage-specific architecture. Section 7 targets the public servant who obtains, accepts or attempts to obtain an undue advantage in connection with improper or dishonest public-duty performance. Section 8 separately punishes the giver or promisor, while protecting a compelled payer who reports within seven days and informed conduct undertaken to assist an investigation. This partly answers the ARC's coercive-collusive concern, although those labels remain analytical rather than statutory.

Corporate bribery is addressed by Section 9, which fines a commercial organisation for business-linked bribery by an associated person, subject to proof of adequate preventive procedures. Section 10 reaches directors and other officers only where consent or connivance is proved. Section 13 now covers entrusted-property misappropriation and intentional illicit enrichment; deletion of the abuse-of-position head improves certainty but may reduce reach against favouritism without direct enrichment.

Proof and permission are also differentiated. Section 20 creates a rebuttable presumption in Section 7 or 11 trials after acceptance, obtaining or attempted obtaining is proved. Section 17A requires previous approval before specified investigation of official-duty decisions, with a three-plus-one-month timeline and spot-arrest exception. Section 19 governs sanction before court cognizance for Sections 7, 10, 11, 13 and 15. Neither timeline should be converted into invented deemed approval.

The architecture is defensible only if safeguards protect bona fide decisions without becoming delay devices. Effective law therefore requires prompt reasoned permissions, professional evidence gathering, genuine corporate compliance, whistleblower safety and separate but coordinated criminal, disciplinary and recovery processes.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.

Original Mains Practice 6 - 20 marks

Question: A company's agent pays an official to approve non-compliant goods; senior managers knew of the plan, and the official's assets later appear disproportionate. Identify the legal routes and safeguards without presuming guilt. Answer in about 250 words.

Model solution

The first task is evidence preservation, not immediate attribution. Investigators should secure the approval file, specifications, inspection records, payment trail, communications, agency contract, corporate controls and the official's lawful income records. The non-compliance and commercial benefit support inquiry, but neither proves every offence.

The official's receipt may engage Section 7 if an undue advantage and the required connection to improper or dishonest public-duty performance are proved. The agent may face Section 8 for giving or promising the advantage. A claim of compulsion requires genuine compulsion and reporting within seven days; voluntary purchase of an unlawful approval is characteristically collusive in ARC analysis. The company may be fined under Section 9 if the agent was associated with it and acted to obtain or retain business or a business advantage. It may prove adequate preventive procedures, but a symbolic policy is insufficient. Managers incur Section 10 liability only if consent or connivance is proved.

Disproportionate assets may support Section 13's intentional-illicit-enrichment head where the public servant cannot satisfactorily account for them. Section 20's rebuttable presumption arises only in its specified trial setting after foundational acceptance or obtaining is proved. Section 17A must be examined if the proposed investigation is relatable to an official-duty decision; the spot-arrest exception may matter. Section 19 sanction is separately required before court cognizance for listed offences.

Corporate, criminal, disciplinary, contractual and recovery processes should remain distinct. Fair hearing, authenticated evidence and reasoned decisions protect innocent actors while allowing proportionate punishment, contract remedy and public-loss recovery when liability is established.

Why this earns marks: The response defines the issue, develops the relevant mechanism with India-centric evidence, tests a limitation, and gives a mark-scaled conclusion.